

		premises.” (Cross-Complaint, ¶ 9.) Moreover, “Section 1. c) of the Management Agreement provides in pertinent part: “The Company is empowered to sign leases on the Owner’s behalf, and to enforce the provisions of same, and to institute legal action or other proceedings to collect rents and other sums due, and to dispossess tenants and other persons from the premises.” (Cross-Complaint, ¶ 10.) The Court finds that Cross-Complainants have alleged the requisite principal-agent relationship to establish a fiduciary relationship at this stage in the litigation. As such, the Demurrer is OVERRULED as to this argument. The Demurrer is further OVERRULED as to the cause of action for declaratory relief as the Demurrer only argues that cause of action fails on the assumption that the Court would sustain the other arguments made in the Demurrer. In sum, the Demurrer is OVERRULED in its entirety. Cross-Defendants shall file an answer to the Cross-Complaint within 20 days of notice of this order The Case Management Conference is continued to August 13, 2026 at 1:30 p.m. <i>Cross-Complainant to give notice.</i>
10 4	TruAbutment Inc. vs. BioAbutment Inc., 25-01517952	<i>Off-calendar.</i>
10 5	Ortiz vs. Nelson, 24-01439993	Defendant, Lee Wilton Nelson (“Defendant”), moves for an order compelling Plaintiff, Brandon Ortiz (“Plaintiff”), to appear for an independent orthopedic medical examination (“orthopedic IME”) with Michael P. Weinstein, M.D. pursuant to Code of Civil Procedure section 2023.310 and 2032.320. Defendant filed multiple versions of the instant motion, but they all seek the same relief. Defendant contends that Plaintiff alleges multiple injuries, with the relevant alleged physical issues that form the basis of this motion being orthopedic injuries that extend to his back and both feet. Defendant asserts that good cause exists for an orthopedic examination because Plaintiff received multiple epidural steroid injections for his back injury. Defendant asserts that an